

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2024-2325

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE AS A PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF BARRY FOWLER, LICENSE NO. LPC.0016267,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (“Board”) and Barry Fowler (“Respondent”), as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order (“Order”).

2. Respondent was licensed to practice as a professional counselor (“LPC”) in the State of Colorado at all times relevant herein.

3. This Order is a full and final resolution of case number 2024-2325. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

4. Respondent admits the following:

a. Respondent failed to act within the limitations created by a mental health, or substance use disorder that renders the person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated section 12-245-224(1)(f)(II) and (g)(I), C.R.S., which states:

12-245-224. Prohibited activities-related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(f)(II) Fails to act within the limitations created by a physical illness, physical condition, or behavioral, mental health, or substance use

disorder that renders the person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under his or her care.

(g)(I) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanctions that the Board believes is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license to practice as an LPC in the State of Colorado is hereby placed on probation for two (2) years, commencing from the effective date of this Order or the date Respondent's therapy monitor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing in this state and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as an LPC in Colorado, is being monitored by a therapy monitor and is in full compliance with all terms of this Order.

10. If, at the end of one (1) year, Respondent has adhered to all terms and conditions of this Order and the therapist agrees, Respondent may request early termination of probation. Request for early termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

11. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

PSYCHOTHERAPY

12. During the period of probation, Respondent shall undergo psychotherapy with a mental health provider approved by the Board ("therapist"). Within 30 days of the

effective date of this Order, Respondent shall submit, in writing, three (3) proposed therapists for the Board's approval. Respondent shall include a program-approved therapist application from each potential therapist, with attached curriculum vitae or resume. The therapist shall meet the following criteria:

a. The therapist shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;

b. It is recommended that the therapist have a minimum of five (5) years of experience and has not been subject to professional discipline;

c. The therapist shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

13. Respondent must have a therapy monitor approved by the Board within two (2) months of the effective date of this Order. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until a therapist is approved. After the Board's written approval of the therapist, Respondent and the therapist shall enter into a written contract for psychotherapy within 30 days. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until the written contract for therapy monitoring is executed.

14. The therapist shall conduct therapy and report to the Board in writing as follows:

a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once each month, unless otherwise approved by the Board based on recommendations of the therapist;

b. The therapist shall report to the Board in writing both the progress of the psychotherapy and whether Respondent is able to practice with reasonable skill and safety for his clients and must send a copy of each report to Respondent. The therapist shall submit his/her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit subsequent reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and

c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, the Board's file, and the therapy evaluator's report, and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Respondent's therapist.

15. If, at any time, the therapist is of the opinion that Respondent is practicing as an LPC in a manner that does not meet the generally accepted standards of practice or has a condition that renders him unable to treat clients with reasonable

skill and safety or that may endanger the health or safety of persons under his care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming his/her opinion. The therapist shall send a copy of such report to Respondent when s/he sends the report to the Board. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

16. Either Respondent or his therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another Board-approved therapist prior to the termination, Respondent shall cease the practice as a professional counselor until he has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report to the Board in accordance with this Order.

17. Respondent cannot practice as an LPC during the period of probation if he is not undergoing therapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

TERMS AND CONDITIONS

18. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

19. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

20. All expenses incurred or necessary to fulfill the terms of this Order shall be the sole responsibility of Respondent and not the Board.

21. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

22. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

23. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

24. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

25. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

26. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

27. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

28. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

29. This Order shall be admissible as evidence at any hearing held before the Board.

30. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

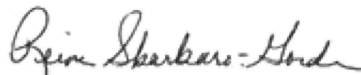
AGREED TO AND ORDERED BY:

RESPONDENT

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



BARRY FOWLER,
LICENSE NO. LPC.0016267



REINA SBARBARO-GORDON
Program Director

Effective this 30th day of June,
2025.